QUANTUM BUSINESS SOLUTIONS, LLC

# Mutual Non-Disclosure Agreement

Quantum Business Solutions, LLC and Van Ausdall & Farrar, Inc.

*DRAFT – Yellow bracketed items must be confirmed or completed. Have counsel review before signing or sending.*

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This Mutual Non-Disclosure Agreement (the "**Agreement**") is made as of [date] (the "**Effective Date**") between:

**Quantum Business Solutions, LLC**, a [South Dakota] limited liability company, 1809 West Parkwood Circle, Sioux Falls, SD 57108 ("**Quantum**"); and

**Van Ausdall & Farrar, Inc.**, a [Indiana] corporation, 6430 East 75th Street, Indianapolis, Indiana 46250 ("**Client**").

Each is a "**Party**" and, when disclosing information, the "**Discloser**"; when receiving it, the "**Recipient**".

## 1. Purpose

The Parties wish to evaluate, negotiate and carry out a business relationship in which Quantum may provide website, CRM, marketing, sales, service and process consulting and implementation services to Client (the "**Purpose**"). Each Party may disclose Confidential Information to the other for the Purpose only.

## 2. Confidential Information

2.1 "**Confidential Information**" means all non-public information, in any form (written, oral, electronic, visual or by access to systems), that the Discloser or its representatives disclose or make available to the Recipient, that is marked or identified as confidential or that a reasonable person would understand to be confidential from its nature or the circumstances of disclosure.

2.2 **Quantum Confidential Information** includes, whether or not marked: Quantum's methodologies, processes, standard operating procedures, frameworks, templates, checklists, playbooks, scoring models, prompts, automations, scripts, code, configurations, tooling, training material, pricing and proposals, client and prospect lists, business plans, and the manner in which Quantum performs its services.

2.3 **Client Confidential Information** includes, whether or not marked: customer, prospect and contact data and CRM records; account credentials and system access; non-public financial, sales, marketing and strategic information; internal systems and documents; and information about Client's security and IT environment.

2.4 Confidential Information also includes the existence and terms of any discussions between the Parties, and all notes, analyses and other materials prepared by the Recipient that contain or reflect Confidential Information.

## 3. Exclusions

Confidential Information does not include information that the Recipient can show by written records: (a) is or becomes generally available to the public through no breach of this Agreement; (b) was lawfully known to the Recipient without confidentiality restriction before disclosure; (c) is lawfully received from a third party with no duty of confidentiality; or (d) is independently developed by the Recipient without use of or reference to the Discloser's Confidential Information. Personal data is not removed from protection merely because parts of it are public. **No "residuals" clause applies:** information retained in unaided memory is not exempt from this Agreement.

## 4. Obligations of the Recipient

4.1 The Recipient will (a) use the Discloser's Confidential Information only for the Purpose; (b) not disclose it to anyone except its employees, contractors, officers, professional advisors, insurers and (for Quantum) approved subprocessors who need to know it for the Purpose and who are bound by written confidentiality obligations at least as protective as this Agreement ("**Representatives**"); and (c) protect it with at least the care it uses for its own similar information and no less than reasonable care.

4.2 The Recipient is responsible for any breach of this Agreement by its Representatives.

4.3 The Recipient will promptly notify the Discloser of any unauthorized use or disclosure of the Discloser's Confidential Information and will cooperate to limit its effects.

4.4 Neither Party will reverse engineer, decompile or attempt to derive the source, structure or underlying logic of any software, automation, template or tool of the other that is made available under this Agreement.

4.5 **Protection of Quantum's methods.** Client acknowledges that Quantum Confidential Information is a valuable trade secret of Quantum. Client will not (a) disclose it to, or use it to onboard, train, brief or direct, any other consultant, agency or service provider that offers services similar to Quantum's; or (b) use it to build, replicate or commission a competing service, method or product. Delivered work product and licenses are governed by the written agreement for the services; nothing in this Agreement transfers or licenses ownership of any Party's intellectual property.

4.6 **Protection of Client data.** Quantum will use Client Confidential Information, and in particular any personal information, only to perform services for Client, and will handle personal information as set out in the Parties' Data Processing Agreement, once signed.

## 5. Compelled disclosure

If the Recipient is required by law, regulation, subpoena or court order to disclose Confidential Information, it will (where legally permitted) give the Discloser prompt written notice so the Discloser may seek a protective order, disclose only the portion legally required, and continue to treat the rest as confidential.

## 6. Ownership; no warranty; no obligation

6.1 All Confidential Information remains the property of the Discloser. No license or other right is granted except the limited right to use it for the Purpose.

6.2 Confidential Information is provided "as is". Neither Party is obligated to disclose any particular information, to proceed with any transaction, or to enter into any further agreement. Nothing creates a partnership, joint venture, agency or exclusivity.

## 7. Term and survival

7.1 This Agreement governs disclosures made during the [two (2)] years after the Effective Date, and either Party may end the disclosure period earlier on written notice.

7.2 The Recipient's obligations continue for [three (3)] years after the end of the disclosure period. Obligations for (a) trade secrets (including Quantum Confidential Information) continue for as long as the information remains a trade secret under applicable law, and (b) personal information continue for as long as the Recipient holds it.

## 8. Return and destruction

Within 15 days after the Discloser's written request or the end of the Purpose, the Recipient will return or securely destroy the Discloser's Confidential Information and confirm in writing on request. The Recipient may keep copies that it must retain by law or that are stored in routine backups, which remain subject to this Agreement for as long as they are kept, and its legal counsel may keep one archival copy for compliance purposes.

## 9. Remedies

Unauthorized use or disclosure may cause irreparable harm for which money damages are inadequate. The Discloser may seek injunctive or other equitable relief, without the need to post a bond to the extent permitted by law, in addition to all other remedies. In any action to enforce this Agreement, the prevailing Party may recover its reasonable attorneys' fees and costs. [Counsel: confirm fee-shifting is desired.]

## 10. Non-solicitation of personnel

During the term of this Agreement and for 12 months after it ends, neither Party will, directly or indirectly, solicit for employment or engagement any employee or independent contractor of the other Party who was involved in the Purpose, without the other's written consent. General advertisements and unsolicited applications that are not targeted at the other Party's personnel do not violate this Section. [Optional – delete if not wanted in this NDA.]

## 11. Protected disclosures

Nothing in this Agreement prohibits any individual from reporting possible violations of law to a government agency, or from making disclosures protected by whistleblower laws. Under 18 U.S.C. § 1833(b), an individual is not liable under any trade secret law for disclosing a trade secret in confidence to a government official or an attorney solely to report or investigate a suspected violation of law, or in a sealed filing in a lawsuit or other proceeding.

## 12. General

12.1 **Governing law and venue.** This Agreement is governed by the laws of the State of [South Dakota], without regard to conflict-of-laws rules. The state and federal courts located in

[Minnehaha County, South Dakota] have exclusive jurisdiction, and each Party consents to them. [Client may ask for Indiana; counsel to advise on any compromise.]

12.2 **Entire agreement; precedence.** This Agreement is the Parties' entire agreement on its subject. A later written agreement signed by both Parties that expressly refers to this Agreement may add to or replace its terms; otherwise this Agreement continues to apply and the more protective provision controls.

12.3 **Amendment and waiver.** Changes must be in a writing signed by both Parties. Failure to enforce a right is not a waiver.

12.4 **Assignment.** Neither Party may assign this Agreement without the other's written consent, except to a successor to substantially all of its business that assumes these obligations.

12.5 **Severability.** If any provision is unenforceable, it will be enforced to the maximum extent allowed and the rest remains in effect.

12.6 **Notices.** Notices must be in writing and sent by email with confirmation or by courier to the addresses above, or to another address a Party designates. Quantum: shawn@thequantumleap.business. Client: [name and email].

12.7 **Counterparts; e-signature.** This Agreement may be signed in counterparts and by electronic signature, each of which is an original.

The Parties have signed this Agreement as of the Effective Date.

| **QUANTUM BUSINESS SOLUTIONS, LLC** | **VAN AUSDALL & FARRAR, INC.** |
|---|---|
| By: _____ | By: _____ |
| Name: Shawn Peterson | Name: _____ |
| Title: Chief Executive Officer | Title: _____ |
| Date: _____ | Date: _____ |